

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR AUGUST 28, 2026 AT 8:30 A.M.**

17. S-CV-0056897 POTAPOVA, ANASTASHA v. TESLA

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant Tesla, Inc.'s Motion to Strike the Complaint

The motion is granted with leave to amend. (Code of Civil Procedure section 435(b)(1), 436(a), (b).)

Defendant challenges the punitive damages alleged in the complaint, asserting plaintiffs have not pled sufficient facts to support such a request. The court has carefully considered the allegations within the complaint, reading the pleading as a whole and providing the most liberal construction in favor of plaintiffs. A review of the allegations show that the allegations as to defendant Tesla are pled in a conclusory fashion without sufficient specific factual allegations to support punitive damages. (Civil Code section 3294; *Brousseau v. Jarrett* (1997) 73 Cal.App.3d 864, 872.) In light of this, the motion is granted.

The language referencing punitive damages in pp. 9:22-10:3; 15:8-18; 23:18; and 24:2 is stricken.

A first amended complaint shall be filed and served by September 11, 2026.

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